

Memo.No.190/Ser.C/88-2, Genl.Admn. (Ser.C) Dept., dt.06.08.1988 regarding acknowledgment of annual property statements and reports of property transactions - proformae prescribed.

Subject Heading : Annual Property Returns - proformae of acknowledgement

Subject Heading : Property transactions - proformae of acknowledgement

Ref : G.O.Ms.No.468, G.A.(Ser.C) Dept., dt.17.04.64.

Sub-rule (1) of Rule 9 of the APCS (Conduct) Rules, 1964, lays down that no Government Servant should except after previous intimation to Government, acquire or dispose of, or permit any member of his family to acquire or dispose of, any immovable property by exchange, purchase, sale, gift or otherwise, either by himself or through others. Sub-Rule(2) of Rule 9 of the said rules lays down that a Government employee who enters into any transaction concerning any movable property exceeding Rs.5,000 in value, whether by way of purchase, sale or otherwise, shall forthwith report such transaction to Government.

2. According to sub-rule (7) of Rule 9 of the APCS (Conduct) Rules, 1964, as amended in G.O.Ms.No.52, GA (Ser.C) Department, dt.04.02.1988, it is obligatory on the part of every Government employee other than those in Andhra Pradesh Last Grade Service and Record Assistants in the Andhra Pradesh General Subordinate Service to declare at the time of entry into Government service as also every year before 15th January, the statements in respect of all immovable properties and movable properties inherited by him or held by him on lease or mortgage, either in his own name or in the name of any member of his family in the forms prescribed in the Annexure I and II respectively to Government through proper channel.

3. The authorities mentioned in sub-rule (10) of Rule 9 of the said rules have been declared as Government for the purpose of receiving, verifying and recording the said statements of the employees under their control.

4. It has been brought to the notice of Government that prior intimation given by Government employees in respect of any transactions relating to sale or purchase entered under sub-rules (1) and (2) of Rule 9 or the property statements submitted by them and received by the competent authorities, are not being acknowledged.

5. It was considered necessary to prescribe proforma acknowledgments and to make it obligatory on the part of competent authorities to issue acknowledgments to the Government employees on receipt of intimations of sale or purchase of property statements.

6. It has, therefore, been decided that the competent authorities may issue acknowledgments to the Government employees in the forms prescribed in Annexure I and II to this memo.

7. Where it is not possible for the competent authority to issue acknowledgments over his signature for all the Government employees under his control, such authority may identify and nominate an officer under his control to receive property statements and issue acknowledgements on his behalf. The fact of such nomination and subsequent changes, if any, therein may be brought to the notice of all concerned.

(Note : See Part II for Proformae (Nos. 43, 44)